

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JORDAN GULLEY,

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER "JOHN" MAURO, TAX
REG.NO.: 056892 and police
officers whose names are yet
unknown,

INDEX NO.:

NYC CLAIM #: 2019PI010404

Defendants.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: June 23, 2020

Defendants' address: 1 Police Plaza, New York, NY & 44TH Precinct

BASIS OF VENUE-LOCATION OF INCIDENT-1011 CARROLL PLACE, BX, NY

ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution, and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum

\$1,000,000.00 with interest from March 31, 2019 and the costs and disbursements of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JORDAN GULLEY,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER "JOHN" MAURO, TAX
REG.NO.: 056892 and police
officers whose names are yet
unknown,

INDEX NO.:

NYC CLAIM #: 2019PI010404

Defendants.

JORDAN GULLEY, by his attorney, Elliot H. Fuld, complain of the
defendants and allege, upon information and belief as follows:

1. JORDAN GULLEY was, at the times of the incident described in this
Complaint, residents of the City and State of New York, County of
Bronx.
2. POLICE OFFICER "JOHN" MAURO, TAX REG.NO.: 056892 and unnamed
police officers were and at all times stated herein and upon
information and belief, are police officer with the New York City
Police Department with regards to the incidents described herein.
3. POLICE OFFICER "JOHN" MAURO, TAX REG.NO.: 056892 and unnamed

police officers were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, POLICE OFFICER "JOHN" MAURO, TAX REG.NO.: 056892 and these unnamed police officers, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about March 31, 2019, police officers forcibly seized and detained the Plaintiff herein in the area of 1011 Carroll Place in Bronx County.

7. After detaining the Plaintiff, police officers searched Plaintiff and searched his vehicle.

8. Police officers kept Plaintiffs in custody for several hours while

infringing on Plaintiff's rights and released him without an explanation and with a "double parking" summons.

9. At the time of the detention those police officers who were present were aware or should have been aware that Plaintiffs did not commit any violations.

10. The detention of the Plaintiffs by those officers and the filing of criminal charges was without probable cause and without basis in law or in fact.

11. Upon information and belief, the summons issued to Plaintiff was dismissed.

12. On or about April 4, 2019, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notices of Claim as required by the General Municipal Law. The 50-h hearing of Plaintiff was not held due to COVID-19 concerns but will, by agreement with Defendants' counsel, be held at a later date.

13. That more than thirty (30) days have elapsed since the service of that Claim and the adjustment or payment thereof has been neglected or refused.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of March 31, 2019 and the dismissal of all charges on a later date.

15. As a result of the false arrest of Plaintiff by defendants, Plaintiffs demands judgment against the Defendants and was damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiffs repeat all the allegations contained in paragraphs "1" through "15" inclusive as though more fully set forth herein.

17. As a result of Defendants' actions, Plaintiff was falsely imprisoned and suffered injuries as described aforesaid.

18. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

19. That the Defendants, their agents, servants and/or employees

failed, refused, or neglected to undertake any measures which could have resulted in Plaintiffs' release.

20. That as a result of Defendants' action, Plaintiffs was compelled to, *inter alia*, lose school attendance day as well as loss of property which were never recovered.

21. In view of the foregoing, Plaintiff has been damaged in the amount of One Million (\$1,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiffs repeat all the allegations contained in paragraphs "1" through "21" inclusive as though more fully set forth herein.

23. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

24. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

25. The municipal Defendants herein were aware of and followed a practice and procedure of arresting and persecuting young African American males and ignored available evidence in arresting the Plaintiffs because Plaintiff is African American.

26. As a result of the foregoing, the Plaintiffs have been damaged in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$1,000,000.00; and
- b. On the Second Cause of Action, the sum of \$1,000,000.00; and
- c. On the Third Cause of Action, the sum of \$1,000,000.00; and
- d. Punitive damages in the sum of \$250,000.00.

Dated: June 23, 2020



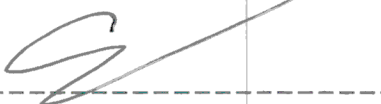
Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, affirms and says: I am an attorney in the

State of New York and am the attorney for JORDAN GULLEY herein, and I verify under the penalties of perjury that all the statements contained in the attached Complaint have been obtained through a review of documents pertaining to this case and from conversations with the Plaintiffs and, upon information and belief, are true. I am making this Verification because, at present, Plaintiffs are unable to appear at my office because of COVID-19 restrictions.

Dated: June 23, 2020



ELLIOT H. FULD